

Remuneration and Facilities of Province Chief Act, 2018

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 3

Province Chief Remuneration and Facilities Act, 2074 (2018)

Certification and Publication Date

2074.07.01

Amending Act

1. Act to Amend Some Nepal Acts, 2075 (2018) 2075.11.19

Act Made to Make Provisions Relating to Remuneration and Facilities of Province Chief

Preamble: Whereas, it is desirable to make provisions relating to the remuneration and facilities of the Province Chief,

The Legislature-Parliament, pursuant to Sub-article (1) of Article 296 of the Constitution of Nepal, has enacted this Act. 1. Short Title and Commencement: (1) This Act may be called the "Province Chief Remuneration and Facilities Act, 2074 (2018)."

(2) This Act shall commence immediately. 2. Remuneration: (1) The Province Chief shall be provided with monthly remuneration and other facilities as specified in Schedule-1.

(2) If the Province Chief retires from that post for any reason or ceases to hold that post, he/she shall be provided with an additional amount equivalent to one month's remuneration as a facility. 3. Residential Facility: (1) The Government of Nepal shall arrange a government house for the residence of the Province Chief in the capital of the concerned province.

(2) Until the arrangement of a house pursuant to Sub-section (1), the Province Chief shall be provided with an amount as determined by the Government of Nepal per month on account of house rent.

(3) The Government of Nepal shall carry out the maintenance and upkeep of the government residence pursuant to Sub-section (1).

(4) The Government of Nepal shall arrange suitable furniture for the house pursuant to Sub-section (1). 4. Vehicle and Fuel Facility: (1) The Government of Nepal shall arrange a vehicle for the Province Chief.

(2) The Government of Nepal shall arrange for the fuel, lubricants, and maintenance required for the vehicle provided pursuant to Sub-section (1). 5. Communication Facility: The Government of Nepal shall arrange communication facilities such as telephone, computer, internet, fax, newspapers, etc. for the residence of the Province Chief. 6. Dress Allowance Facility: The Province Chief shall be given an amount as specified in Schedule-1 each year on account of dress allowance. 7. Hospitality and Contingent Expenses: (1) The Province Chief shall be given an amount as specified in Schedule-1 on account of hospitality and contingent expenses.

(2) Bills and receipts for expenses pursuant to Sub-section (1) need not be submitted. 8. Facility Relating to Personal Physician: The Government of Nepal shall arrange one personal physician for the Province Chief. 9.

Medical Treatment Expenses: (1) The Government of Nepal shall bear the medical treatment expenses incurred when the Province Chief is admitted to a hospital and receives treatment within the country, or when treatment is not possible in Nepal and he/she goes abroad for treatment upon the recommendation of a Medical Board. (2) If the Province Chief needs an attendant while admitted to a hospital and receiving treatment, the Government of Nepal shall provide reasonable expenses for one attendant on account of attendant expenses. (3) The amount on account of treatment expenses pursuant to Sub-section (1) shall be paid by the Office of the Prime Minister and Council of Ministers directly to the hospital where the Province Chief is admitted. 10. Festival Expenses: (1) The Province Chief shall receive an amount equivalent to one month's remuneration received by him/her each year as festival expenses for festivals celebrated according to his/her religion, culture, and tradition. (2) The Province Chief may take payment of the amount pursuant to Sub-section (1) once in a fiscal year on the occasion of the main festival celebrated according to his/her religion, culture, and tradition. 11. Amended by the Act to Amend Some Nepal Acts, 2075 (2018). Entitlement to Daily Allowance: The Province Chief shall receive daily allowance as specified in Schedule-2 while traveling within the country or abroad in the course of work relating to his/her office. 12. Insurance Facility: The Province Chief shall receive insurance facility as specified in Schedule-2 while traveling within the country or abroad in the course of government work. 13. Provision Relating to Experts: (1) The Province Chief may appoint experts to assist in his/her official work. (2) The number of experts appointed pursuant to Sub-section (1) and the monthly remuneration and facilities to be received by such experts shall be as determined by the Government of Nepal. 14. Provision Relating to Personal Secretariat: (1) For the personal secretariat of the Province Chief, there shall be employees as per Schedule-3. (2) Employees working in the personal secretariat pursuant to Sub-section (1) shall receive remuneration and facilities as determined by the Government of Nepal. 15. Oath: The Province Chief shall, before assuming office, take an oath of office and secrecy before the President according to the format set out in Schedule-4. 16. Immunity from Legal Action: No legal action shall be instituted against the Province Chief in any court in relation to acts or actions performed by him/her in his/her official capacity, whether while holding office or after retirement from service. 17.

Contact with Government of Nepal: The office of the Province Chief shall maintain contact with the Government of Nepal through the Office of the Prime Minister and Council of Ministers. 18. Amendment to Schedule: The Government of Nepal may, by publishing a notice in the Nepal Gazette, make necessary amendments to the Schedule. Schedule - 1 (Relating to Sub-section (1) of Section 2, Section 6 and Section 7) Remuneration and Other Facilities of Province Chief Particulars Amount 1. Remuneration per month Rs. 64,000/- 2. Dress Allowance per year Rs. 18,000/- 3. Hospitality and Contingent Expenses per month Rs. 40,000/- Schedule - 2 (Relating to Sections 11 and 12) Daily Allowance and Insurance Facility Received by Province Chief S. No. Particulars Amount Received per day 1. Daily allowance rate for travel within the country Rs. 3,000/- 2. Daily allowance rate for travel abroad 250 US Dollars 3. Insurance Rs. 1,500,000/- Note: 1. While traveling to European countries, Australia, New Zealand, America, Canada, Kuwait, Korea, Japan, Hong Kong, Russia, Qatar, Zambia, UAE, Singapore, Lebanon, Bahrain, an additional thirty-three percent of the rate mentioned above shall be provided. 2. While staying overnight in places other than Chennai, Hyderabad, Bangalore, Mumbai, Delhi, Kolkata of India, and Dhaka and Chittagong of Bangladesh, only fifty percent of the rate mentioned above shall be provided. Schedule-3 (Relating to Sub-section (1) of Section 14) Employees in the Personal Secretariat of the Province Chief Post Number (a) Principal Private Secretary 1 (b) Joint Private Secretary 1 (c) Under Secretary 1 (d) Private Officer 1 (e) Photographer Officer 1 (f) Computer Assistant 1 (g) Administration Assistant 1 (h) Account Assistant 1 (i) Driver 2 (j) Office Helper 2 Schedule-4 (Relating to Section 15) Oath I, , do solemnly and sincerely promise to remain completely

faithful to the country and the people.